

**SUBSTITUTE FOR
SENATE BILL NO. 480**

A bill to amend 1973 PA 116, entitled
"An act to provide for the protection of children through the
licensing and regulation of child care organizations; to provide
for the establishment of standards of care for child care
organizations; to prescribe powers and duties of certain
departments of this state and adoption facilitators; to provide
penalties; and to repeal acts and parts of acts,"
by amending section 1 (MCL 722.111), as amended by 2024 PA 50.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. (1) As used in this act:

2 ~~(a) "Child care staff member" means an individual who is 16~~
3 ~~years of age or older to whom 1 or more of the following apply:~~

4 ~~(i) The individual is employed by a child care center, group~~
5 ~~child care home, or family child care home for compensation,~~



~~including a contract employee or a self-employed individual.~~

~~(ii) An individual whose activities involve the unsupervised care or supervision of children for a child care center, group child care home, or family child care home.~~

~~(iii) An individual who has unsupervised access to children who are cared for or supervised by a child care center, group child care home, or family child care home.~~

~~(iv) An individual who acts in the role of a licensee designee or program director.~~

(a) "Child care center" means a facility, other than a private residence, receiving 1 or more children under 13 years of age for care for periods of less than 24 hours a day, where the parents or guardians are not immediately available to the child. Child care center includes a facility that provides care for not less than 2 consecutive weeks, regardless of the number of hours of care per day. The facility is generally described as a child care center, day care center, day nursery, nursery school, parent cooperative preschool, play group, before- or after-school program, or drop-in center. Child care center does not include any of the following:

(i) A Sunday school, a vacation bible school, or a religious instructional class that is conducted by a religious organization where children are attending for not more than 3 hours per day for an indefinite period or for not more than 8 hours per day for a period not to exceed 4 weeks during a 12-month period.

(ii) A facility operated by a religious organization where children are in the religious organization's care for not more than 3 hours while individuals responsible for the children are attending religious services.

(iii) A program that is primarily supervised, school-age-child-



1 focused training in a specific subject, including, but not limited
2 to, dancing, drama, music, or religion. This exclusion applies only
3 to the time a child is involved in supervised, school-age-child-
4 focused training.

5 (iv) A program that is primarily an incident of group athletic
6 or social activities for school-age children sponsored by or under
7 the supervision of an organized club or hobby group, including, but
8 not limited to, youth clubs, scouting, and school-age recreational
9 or supplementary education programs. This exclusion applies only to
10 the time the school-age child is engaged in the group athletic or
11 social activities and if the school-age child can come and go at
12 will.

13 (v) A program that primarily provides therapeutic services to
14 a child.

15 (b) "Child care organization" means a governmental or
16 nongovernmental organization having as its principal function
17 receiving minor children for care, maintenance, training, and
18 supervision, notwithstanding that educational instruction may be
19 given. Child care organization includes organizations commonly
20 described as child caring institutions, child placing agencies,
21 children's camps, children's campsites, children's therapeutic
22 group homes, child care centers, day care centers, nursery schools,
23 parent cooperative preschools, foster homes, group homes, or child
24 care homes. Child care organization does not include a governmental
25 or nongovernmental organization that does either of the following:

26 (i) Provides care exclusively to minors who have been
27 emancipated by court order under section 4(3) of 1968 PA 293, MCL
28 722.4.

29 (ii) Provides care exclusively to individuals who are 18 years



1 of age or older and to minors who have been emancipated by court
2 order under section 4(3) of 1968 PA 293, MCL 722.4, at the same
3 location.

4 (c) "Child care staff member" means an individual who is 16
5 years of age or older to whom 1 or more of the following apply:

6 (i) The individual is employed by a child care center, group
7 child care home, or family child care home for compensation,
8 including a contract employee or a self-employed individual.

9 (ii) The individual's activities involve the unsupervised care
10 or supervision of children for a child care center, group child
11 care home, or family child care home.

12 (iii) The individual has unsupervised access to children who are
13 cared for or supervised by a child care center, group child care
14 home, or family child care home.

15 (iv) The individual acts in the role of a licensee designee or
16 program director.

17 (d) ~~(e)~~—"Child caring institution" means a child care facility
18 that is organized for the purpose of receiving minor children for
19 care, maintenance, and supervision, usually on a 24-hour basis, in
20 buildings maintained by the child caring institution for that
21 purpose, and operates throughout the year. An educational program
22 may be provided, but the educational program must not be the
23 primary purpose of the facility. Child caring institution includes
24 a maternity home for the care of unmarried mothers who are minors
25 and an agency group home, that is described as a small child caring
26 institution, owned, leased, or rented by a licensed agency
27 providing care for more than 4 but less than 13 minor children.
28 Child caring institution also includes an institution for
29 developmentally disabled or emotionally disturbed minor children.



1 Child caring institution does not include a hospital, nursing home,
2 or home for the aged licensed under article 17 of the public health
3 code, 1978 PA 368, MCL 333.20101 to 333.22260, a boarding school
4 licensed under section 1335 of the revised school code, 1976 PA
5 451, MCL 380.1335, a hospital or facility operated by the state or
6 licensed under the mental health code, 1974 PA 258, MCL 330.1001 to
7 330.2106, or an adult foster care family home or an adult foster
8 care small group home licensed under the adult foster care facility
9 licensing act, 1979 PA 218, MCL 400.701 to 400.737, in which a
10 child has been placed under section 5(6).

11 **(e)** ~~(d)~~—"Child caring institution staff member" means an
12 individual who is 18 years of age or older to whom 1 or more of the
13 following apply:

14 (i) The individual is employed by a child caring institution
15 for compensation, including an adult who does not work directly
16 with children.

17 (ii) The individual is a contract employee or self-employed
18 individual with a child caring institution.

19 (iii) The individual is an intern or other individual who
20 provides specific services under the rules promulgated under this
21 act.

22 **(f)** ~~(e)~~—"Child placing agency" means a governmental
23 organization or an agency organized under the nonprofit corporation
24 act, 1982 PA 162, MCL 450.2101 to 450.3192, for the purpose of
25 receiving children for placement in private family homes for foster
26 care or for adoption. The function of a child placing agency may
27 include investigating applicants for adoption and investigating and
28 certifying foster family homes and foster family group homes as
29 provided in this act. The function of a child placing agency may



1 also include supervising children who are at least 16 but less than
 2 21 years of age and who are living in unlicensed residences as
 3 provided in section 5(4).

4 **(g)** ~~(f)~~—"Children's camp" means a residential, day, troop, or
 5 travel camp that provides care and supervision and is conducted in
 6 a natural environment for more than 4 children, apart from the
 7 children's parents, relatives, or legal guardians, for 5 or more
 8 days in a 14-day period.

9 **(h)** ~~(g)~~—"Children's campsite" means the outdoor setting where
 10 a children's residential or day camp is located.

11 **(i)** ~~(h)~~—"Children's therapeutic group home" means a child
 12 caring institution receiving children who are diagnosed with a
 13 developmental disability as defined in section 100a of the mental
 14 health code, 1974 PA 258, MCL 330.1100a, or a serious emotional
 15 disturbance as defined in section 100d of the mental health code,
 16 1974 PA 258, MCL 330.1100d, and that meets all of the following
 17 requirements:

18 (i) Provides care, maintenance, and supervision, usually on a
 19 24-hour basis.

20 (ii) Has a capacity of not more than 6 children.

21 (iii) Complies with the rules for child caring institutions.
 22 Emergency safety intervention in the form of physical management is
 23 allowed but must comply with the mental health code, 1974 PA 258,
 24 MCL 330.1001 to 330.2106, and associated administrative rules.

25 (iv) Is not a private home.

26 (v) Is not located on a campus with other licensed facilities.

27 ~~(i) "Child care center" means a facility, other than a private~~
 28 ~~residence, receiving 1 or more children under 13 years of age for~~
 29 ~~care for periods of less than 24 hours a day, where the parents or~~



~~guardians are not immediately available to the child. Child care center includes a facility that provides care for not less than 2 consecutive weeks, regardless of the number of hours of care per day. The facility is generally described as a child care center, day care center, day nursery, nursery school, parent cooperative preschool, play group, before- or after-school program, or drop-in center. Child care center does not include any of the following:~~

~~(i) A Sunday school, a vacation bible school, or a religious instructional class that is conducted by a religious organization where children are attending for not more than 3 hours per day for an indefinite period or for not more than 8 hours per day for a period not to exceed 4 weeks during a 12 month period.~~

~~(ii) A facility operated by a religious organization where children are in the religious organization's care for not more than 3 hours while individuals responsible for the children are attending religious services.~~

~~(iii) A program that is primarily supervised, school-age-child-focused training in a specific subject, including, but not limited to, dancing, drama, music, or religion. This exclusion applies only to the time a child is involved in supervised, school-age-child-focused training.~~

~~(iv) A program that is primarily an incident of group athletic or social activities for school-age children sponsored by or under the supervision of an organized club or hobby group, including, but not limited to, youth clubs, scouting, and school-age recreational or supplementary education programs. This exclusion applies only to the time the school-age child is engaged in the group athletic or social activities and if the school-age child can come and go at will.~~



1 ~~(v) A program that primarily provides therapeutic services to~~
2 ~~a child.~~

3 (j) "Conviction" means a final conviction, the payment of a
4 fine, a plea of guilty or nolo contendere if accepted by the court,
5 a finding of guilt for a criminal law violation or a juvenile
6 adjudication or disposition by the juvenile division of probate
7 court or family division of circuit court for a violation that if
8 committed by an adult would be a crime, or a conviction in a tribal
9 court or a military court.

10 (k) "Criminal history check" means a fingerprint-based
11 criminal history record information background check through the
12 department of state police and the Federal Bureau of Investigation.

13 (l) "Criminal history record information" means that term as
14 defined in section 1a of 1925 PA 289, MCL 28.241a.

15 (m) "Department" means the department of **lifelong education,**
16 **advancement, and potential, the department of** health and human
17 services, and the department of licensing and regulatory affairs or
18 a successor agency or department responsible for licensure under
19 this act. The department of ~~licensing and regulatory affairs~~
20 **lifelong education, advancement, and potential** is responsible for
21 licensing and regulatory matters for child care centers, group
22 child care homes, family child care homes, children's camps, and
23 children's campsites. The department of health and human services
24 is responsible for licensing and regulatory matters for child
25 caring institutions, child placing agencies, children's therapeutic
26 group homes, foster family homes, and foster family group homes.

27 (n) "Drinking fountain" means a plumbing fixture that is
28 connected to the potable water distribution system and drainage
29 system that allows the user to obtain a drink directly from a



1 stream of flowing water without the use of any accessory.

2 (o) "Eligible" means that the individual obtained the checks
3 and clearances described in sections 5n and 5q and is considered
4 appropriate to obtain a license, to be a member of the household of
5 a group child care home or family child care home, or to be a child
6 care staff member.

7 (p) "Faucet" means a valve end of a water pipe by which water
8 is drawn from or held within the pipe.

9 (q) "Filtered bottle-filling station" or "station" means an
10 apparatus that meets all of the following requirements:

11 (i) Is connected to customer site piping.

12 (ii) Filters water and is certified to meet NSF/ANSI standard
13 53 for lead reduction and NSF/ANSI standard 42 for particulate
14 removal.

15 (iii) The flow rate through the station is paired to the
16 specified flow rate of the filter cartridge.

17 (iv) Has a light or other device to indicate filter cartridge
18 replacement status.

19 (v) Is designed to fill drinking bottles or other containers
20 for personal water consumption.

21 (vi) Includes a drinking fountain.

22 (r) "Filtered faucet" means a faucet that at the point of use
23 includes a filter that is certified to meet NSF/ANSI standard 53
24 for lead reduction and NSF/ANSI standard 42 for particulate
25 removal.

26 (s) "Filtered pitcher" means a container used for holding and
27 pouring liquids that at the point of use includes a filter that is
28 certified to meet NSF/ANSI standard 53 for lead reduction and
29 NSF/ANSI standard 42 for particulate removal.



1 (t) "Guardian" means that term as defined under section 1104
 2 of the estates and protected individuals code, 1998 PA 386, MCL
 3 700.1104.

4 (u) "Increased capacity" means 1 additional child added to the
 5 total number of minor children received for care and supervision in
 6 a family child care home or 2 additional children added to the
 7 total number of minor children received for care and supervision in
 8 a group child care home.

9 (v) ~~(t)~~ "Ineligible" means that the individual obtained the
 10 checks and clearances as described in sections 5n and 5q and is not
 11 considered appropriate to obtain a license, to be a member of the
 12 household of a group child care home or family child care home, or
 13 to be a child care staff member due to violation of section 5n, 5q,
 14 or 5r.

15 ~~(u) "Increased capacity" means 1 additional child added to the~~
 16 ~~total number of minor children received for care and supervision in~~
 17 ~~a family child care home or 2 additional children added to the~~
 18 ~~total number of minor children received for care and supervision in~~
 19 ~~a group child care home.~~

20 ~~(v) "Private home" means a private residence in which the~~
 21 ~~licensee permanently resides, which residency is not contingent~~
 22 ~~upon caring for children or employment by a child placing agency.~~
 23 ~~Private home includes a full-time foster family home, a full-time~~
 24 ~~foster family group home, a group child care home, or a family~~
 25 ~~child care home, as follows:~~

26 ~~(i) "Foster family home" means the private home of an~~
 27 ~~individual who is licensed to provide 24-hour care for 1 but not~~
 28 ~~more than 4 minor children who are placed away from their parent,~~
 29 ~~legal guardian, or legal custodian in foster care. The licensed~~



1 ~~individual providing care is required to comply with the reasonable~~
2 ~~and prudent parenting standard as defined in section 1 of chapter~~
3 ~~XIIA of the probate code of 1939, 1939 PA 288, MCL 712A.1.~~

4 ~~(ii) "Foster family group home" means the private home of an~~
5 ~~individual who has been licensed by the department to provide 24-~~
6 ~~hour care for more than 4 but fewer than 7 minor children who are~~
7 ~~placed away from their parent, legal guardian, or legal custodian~~
8 ~~in foster care. The licensed individual providing care is required~~
9 ~~to comply with the reasonable and prudent parenting standard as~~
10 ~~defined in section 1 of chapter XIIA of the probate code of 1939,~~
11 ~~1939 PA 288, MCL 712A.1.~~

12 ~~(iii) "Family child care home" means a private home in which 1~~
13 ~~but fewer than 7 minor children are received for care and~~
14 ~~supervision for compensation for periods of less than 24 hours a~~
15 ~~day, unattended by a parent or legal guardian, except children~~
16 ~~related to an adult member of the household. Family child care home~~
17 ~~includes a home in which care is given to an unrelated minor child~~
18 ~~for more than 4 weeks during a calendar year. A family child care~~
19 ~~home does not include an individual providing babysitting services~~
20 ~~for another individual. As used in this subparagraph, "providing~~
21 ~~babysitting services" means caring for a child on behalf of the~~
22 ~~child's parent or guardian if the annual compensation for providing~~
23 ~~those services does not equal or exceed \$600.00 or an amount that~~
24 ~~would according to the internal revenue code of 1986 obligate the~~
25 ~~child's parent or guardian to provide a form 1099-MISC to the~~
26 ~~individual for compensation paid during the calendar year for those~~
27 ~~services. Family child care home includes a private home with~~
28 ~~increased capacity.~~

29 ~~(iv) "Group child care home" means a private home in which more~~



~~than 6 but not more than 12 minor children are given care and supervision for periods of less than 24 hours a day unattended by a parent or legal guardian, except children related to an adult member of the household. Group child care home includes a home in which care is given to an unrelated minor child for more than 4 weeks during a calendar year. Group child care home includes a private home with increased capacity.~~

(w) "Legal custodian" means an individual who is at least 18 years of age in whose care a minor child remains or is placed after a court makes a finding under section 13a(5) of chapter XIIIA of the probate code of 1939, 1939 PA 288, MCL 712A.13a.

(x) "Legal entity" means a sole proprietorship, partnership, corporation, limited liability company, or any other entity.

(y) "Licensee" means a person, legal entity organized under a law of this state, state or local government, or trust that has been issued a license under this act to operate a child care organization.

(z) "Licensee designee" means the individual designated in writing by the board of directors of the corporation or by the owner or person with legal authority to act on behalf of the company or organization on licensing matters. The individual must agree in writing to be designated as the licensee designee. All license applications must be signed by the licensee in the case of the individual or by a member of the corporation, company, or organization.

(aa) ~~(z)~~ "Listed offense" means that term as defined in section 2 of the sex offenders registration act, 1994 PA 295, MCL 28.722.

(bb) ~~(aa)~~ "Member of the household" means any individual who



1 resides in a family child care home, group child care home, foster
 2 family home, or foster family group home on an ongoing basis, or
 3 who has a recurrent presence in the home, including, but not
 4 limited to, overnight stays. For foster family homes and foster
 5 family group homes, a member of the household does not include a
 6 foster child. For group child care homes and family child care
 7 homes, a member of the household does not include a child to whom
 8 child care is being provided.

9 **(cc) "Minor child" means any of the following:**

10 **(i) An individual less than 18 years of age.**

11 **(ii) An individual who is a resident in a child caring**
 12 **institution, foster family home, or foster family group home, who**
 13 **is at least 18 but less than 21 years of age, and who is an**
 14 **individual who meets the requirements of the young adult voluntary**
 15 **foster care act, 2011 PA 225, MCL 400.641 to 400.671.**

16 **(iii) An individual who is a resident in a child caring**
 17 **institution, children's camp, foster family home, or foster family**
 18 **group home; who becomes 18 years of age while residing in a child**
 19 **caring institution, children's camp, foster family home, or foster**
 20 **family group home; and who continues residing in a child caring**
 21 **institution, children's camp, foster family home, or foster family**
 22 **group home to receive care, maintenance, training, and supervision.**

23 **(iv) An individual 18 years of age or older who is placed in an**
 24 **unlicensed residence under section 5(4) or a foster family home**
 25 **under section 5(7) .**

26 **(v) An individual less than 21 years of age following an**
 27 **adjudication under section 2(a) of chapter XIIA of the probate code**
 28 **of 1939, 1939 PA 288, MCL 712A.2, or a conviction under section 1**
 29 **of chapter IX of the code of criminal procedure, 1927 PA 175, MCL**



1 769.1.

2 (vi) An individual less than 21 years of age who has been
3 ordered by a court into a pretrial detention at a licensed child
4 caring institution.

5 (vii) An individual less than 21 years of age who remains under
6 the jurisdiction of the juvenile court, whether before or after
7 adjudication, and who, due to licensing, statutory, or regulatory
8 requirements, is placed or temporarily housed in an adult detention
9 facility or under court-ordered community supervision, including
10 electronic monitoring. A placement as described under this
11 subparagraph must be treated as continuous court-ordered custody
12 for the purposes of eligibility for placement in, or transfer to, a
13 licensed child caring institution.

14 (dd) ~~(bb)~~—"Original license" means a license issued to a child
15 care organization during the first 6 months of operation indicating
16 that the organization is in compliance with all rules promulgated
17 by the department under this act.

18 (ee) "Private home" means a private residence in which the
19 licensee permanently resides, which residency is not contingent on
20 caring for children or employment by a child placing agency.
21 Private home includes a full-time foster family home, a full-time
22 foster family group home, a group child care home, or a family
23 child care home, as follows:

24 (i) "Family child care home" means a private home in which 1
25 but fewer than 7 minor children are received for care and
26 supervision for compensation for periods of less than 24 hours a
27 day, unattended by a parent or legal guardian, except children
28 related to an adult member of the household. Family child care home
29 includes a home in which care is given to an unrelated minor child



1 for more than 4 weeks during a calendar year. A family child care
2 home does not include an individual providing babysitting services
3 for another individual. As used in this subparagraph, "providing
4 babysitting services" means caring for a child on behalf of the
5 child's parent or guardian if the annual compensation for providing
6 those services does not equal or exceed \$600.00 or an amount that
7 would, according to the internal revenue code of 1986, obligate the
8 child's parent or guardian to provide a form 1099-MISC to the
9 individual for compensation paid during the calendar year for those
10 services. Family child care home includes a private home with
11 increased capacity.

12 (ii) "Foster family group home" means the private home of an
13 individual who has been licensed by the department to provide 24-
14 hour care for more than 4 but fewer than 7 minor children who are
15 placed away from their parent, legal guardian, or legal custodian
16 in foster care. The licensed individual providing care is required
17 to comply with the reasonable and prudent parenting standard as
18 defined in section 1 of chapter XIIIA of the probate code of 1939,
19 1939 PA 288, MCL 712A.1.

20 (iii) "Foster family home" means the private home of an
21 individual who is licensed to provide 24-hour care for 1 but not
22 more than 4 minor children who are placed away from their parent,
23 legal guardian, or legal custodian in foster care. The licensed
24 individual providing care is required to comply with the reasonable
25 and prudent parenting standard as defined in section 1 of chapter
26 XIIIA of the probate code of 1939, 1939 PA 288, MCL 712A.1.

27 (iv) "Group child care home" means a private home in which more
28 than 6 but not more than 12 minor children are given care and
29 supervision for periods of less than 24 hours a day unattended by a



parent or legal guardian, except children related to an adult member of the household. Group child care home includes a home in which care is given to an unrelated minor child for more than 4 weeks during a calendar year. Group child care home includes a private home with increased capacity.

(ff) ~~(ee)~~—"Provisional license" means a license issued to a child care organization that is temporarily unable to conform to the rules promulgated under this act.

(gg) ~~(dd)~~—"Psychiatric residential treatment facility" or "PRTF" means a facility other than a hospital that provides psychiatric services, as described in 42 CFR 441.150 to 441.184, in an inpatient setting to individuals under the age of 21. Emergency safety intervention in the form of physical management is allowed but must comply with the mental health code, 1974 PA 258, MCL 330.1001 to 330.2106, and associated administrative rules.

(hh) ~~(ee)~~—"Qualified residential treatment program" or "QRTP" means a program within a child caring institution to which all of the following apply:

(i) The program has a trauma-informed treatment model, evidenced by the inclusion of trauma awareness, knowledge, and skills into the program's culture, practices, and policies.

(ii) The program has registered or licensed nursing and other licensed clinical staff on-site or available 24 hours a day, 7 days a week, who provide care in the scope of their practice as provided in parts 170, 172, 181, 182, 182A, and 185 of the public health code, 1978 PA 368, MCL 333.17001 to 333.17097, 333.17201 to 333.17242, 333.18101 to 333.18117, 333.18201 to 333.18237, 333.18251 to 333.18267, and 333.18501 to 333.18518.

(iii) The program integrates families into treatment, including



1 maintaining sibling connections.

2 (iv) The program provides aftercare services for at least 6
3 months post discharge.

4 (v) The program is accredited by an independent not-for-profit
5 organization as described in 42 USC 672(k)(4)(G).

6 (vi) The program does not include a detention facility,
7 forestry camp, training school, or other facility operated
8 primarily for detaining minor children who are determined to be
9 delinquent.

10 (ii) ~~(ff)~~ "Regular license" means a license issued to a child
11 care organization indicating that the organization is in
12 substantial compliance with all rules promulgated under this act
13 and, if there is a deficiency, has entered into a corrective action
14 plan.

15 ~~(gg) "Guardian" means the individual's guardian.~~

16 ~~(hh) "Minor child" means any of the following:~~

17 ~~(i) An individual less than 18 years of age.~~

18 ~~(ii) An individual who is a resident in a child caring~~
19 ~~institution, foster family home, or foster family group home, who~~
20 ~~is at least 18 but less than 21 years of age, and who meets the~~
21 ~~requirements of the young adult voluntary foster care act, 2011 PA~~
22 ~~225, MCL 400.641 to 400.671.~~

23 ~~(iii) An individual who is a resident in a child caring~~
24 ~~institution, children's camp, foster family home, or foster family~~
25 ~~group home; who becomes 18 years of age while residing in a child~~
26 ~~caring institution, children's camp, foster family home, or foster~~
27 ~~family group home; and who continues residing in a child caring~~
28 ~~institution, children's camp, foster family home, or foster family~~
29 ~~group home to receive care, maintenance, training, and supervision.~~



~~A minor child under this subparagraph does not include an individual 18 years of age or older who is placed in a child caring institution, foster family home, or foster family group home under an adjudication under section 2(a) of chapter XIIA of the probate code of 1939, 1939 PA 288, MCL 712A.2, or under section 1 of chapter IX of the code of criminal procedure, 1927 PA 175, MCL 769.1. This subparagraph applies only if the number of those residents who become 18 years of age does not exceed the following:~~

~~(A) Two, if the total number of residents is 10 or fewer.~~

~~(B) Three, if the total number of residents is not less than 11 and not more than 14.~~

~~(C) Four, if the total number of residents is not less than 15 and not more than 20.~~

~~(D) Five, if the total number of residents is 21 or more.~~

~~(iv) An individual 18 years of age or older who is placed in an unlicensed residence under section 5(4) or a foster family home under section 5(7).~~

(jj) ~~(ii)~~ "Related" means 1 of the following:

(i) Except as provided in subparagraph (ii), a relative as defined in section 13a of chapter XIIA of the probate code of 1939, 1939 PA 288, MCL 712A.13a.

(ii) For licensing by the department related to a child care center, children's camp, children's campsite, family child care home, foster family home, foster family group home, or group child care home, in the relationship by blood, marriage, or adoption, as parent, grandparent, great-grandparent, great-great-grandparent, aunt or uncle, great-aunt or great-uncle, great-great-aunt or great-great-uncle, sibling, stepsibling, nephew or niece, first cousin or first cousin once removed, and the spouse of any of the

1 individuals described in this definition, even after the marriage
2 has ended by death or divorce.

3 **(kk)** ~~(jj)~~ "Religious organization" means a church,
4 ecclesiastical corporation, or group, not organized for pecuniary
5 profit, that gathers for mutual support and edification in piety or
6 worship of a supreme deity.

7 **(ll)** ~~(kk)~~ "School-age child" means a child who is eligible to
8 attend a grade of kindergarten or higher, but is less than 13 years
9 of age. A child is considered to be a school-age child on the first
10 day of the school year in which the child is eligible to attend
11 school.

12 **(mm)** ~~(ll)~~ "Severe physical injury" means serious physical harm
13 as that term is defined in section 136b of the Michigan penal code,
14 1931 PA 328, MCL 750.136b.

15 ~~(mm) "Licensee designee" means the individual designated in~~
16 ~~writing by the board of directors of the corporation or by the~~
17 ~~owner or person with legal authority to act on behalf of the~~
18 ~~company or organization on licensing matters. The individual must~~
19 ~~agree in writing to be designated as the licensee designee. All~~
20 ~~license applications must be signed by the licensee in the case of~~
21 ~~the individual or by a member of the corporation, company, or~~
22 ~~organization.~~

23 **(nn)** "Water delivery service" means a service that delivers
24 drinking water to a child care center and provides drinking water
25 that meets the standards of the safe drinking water act, 42 USC
26 300f to 300j-25.

27 **(2)** A family child care home or group child care home is
28 automatically eligible for increased capacity after satisfying all
29 of the following criteria:



1 (a) Holds a current license.

2 (b) Has been licensed to operate for at least 29 consecutive
3 months.

4 (c) Has received 1 or more unrelated minor children for care
5 and supervision during the licensed period under subdivision (b).

6 (d) Has received a renewed regular license after at least 29
7 months of licensed operation under subdivision (b).

8 (3) The department may rescind increased capacity due to 1 or
9 more of the following:

10 (a) Corrective action.

11 (b) Licensing action.

12 (c) Determination by the department that increased capacity is
13 not conducive to the welfare of children as that term is defined in
14 section 5m.

15 (4) If the department rescinds increased capacity as outlined
16 in subsection (3), the family child care home or group child care
17 home may be considered for increased capacity not less than 22
18 months after rescinding increased capacity in a form and manner
19 determined by the department.

20 (5) A family child care home or group child care home may
21 appeal rescission of increased capacity under a hearing held in the
22 manner provided under section 11(2).